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Thirteenth Session of the United Nations Permanent Forum on Indigenous Issues (UNPFII)

12-23 May 2014, UN Headquarters, New York, NY

Agenda Item 9: Future work of the Permanent Forum, including emerging issues

Joint Intervention of The American Indian Law Alliance, and the Haudenosaunee, the Seventh Generation Fund for Indigenous Peoples, Loretto Community, Native Children's Survival, Tonatierra, American Indian Community House, Rigoberta Menchú Tum Foundation, Flying Eagle Woman Fund for Peace, Justice, and Sovereignty, Southern Diaspora Research and Development Center, United Methodist Women, Spiderwoman Theater, Morning Star Foundation, WESPAC Foundation and the Connie Hogarth Center for Social Action.

May 22, 2014

Presented by Ms. Tonya Gonnella Frichner, Esq. (Onondaga Nation)

1) We wish to bring to the attention of the Forum, the Alta Outcome Document, from the Global Indigenous Preparatory Conference for the United Nations High Level Plenary Meeting of the General Assembly to be known as the World Conference on Indigenous Peoples 10-12 June 2013, Alta (A/HRC/EMRIP/2013/CRP.2) which took place on the traditional territories and lands of the Sami people in Alta, Norway, which states in paragraph 29, "*Pursuant to the universal application of the right of self determination for all Peoples, recommends that the UN recognize Indigenous Peoples and Nations based on our original free existence, inherent sovereignty and the right of self determination in international law. We call for, at a minimum, permanent observer status within the UN system enabling our direct participation through our own governments and parliaments. Our own governments include inter alia our traditional councils and authorities.*"

2) The Alta Outcome Document calls for a minimum of permanent observer status within the UN system. Recognizing the wide array of rights and privileges accorded to permanent observers, we support this call.

3) Therefore Madam Chair, we would respectfully request that the UN Permanent Forum on Indigenous Issues consider for its future work the following recommendation:

4) Recognizing that the Haudenosaunee and other indigenous Nations and Peoples have continued to express their fundamental right to self-determination and their original unbroken right to sovereignty over their lands, resources, and territories; we recommend permanent observer status be given serious consideration, building upon the recommendation of the Expert Mechanism on the Rights of Indigenous Peoples in 2011, "*adopt, as a matter of urgency, appropriate permanent measures to ensure that indigenous peoples' governance bodies and institutions, including traditional indigenous governments, indigenous parliaments, assemblies and councils, are able to participate at the UN as observers with, at a minimum, the same participatory rights as non-governmental organization in consultative status with the Economic and Social Council*" (A/HRC/18/43).

5) We would go further, Madame Chair, and draw attention to the permanent observer status of entities which have received a standing invitation to participate as permanent observers in the sessions and the work of the General Assembly and while maintaining permanent observers at UN Headquarters, such as the Permanent Observer Mission of the Holy See and the Permanent Observer Mission of Palestine. Indigenous Peoples and Nations cannot be locked into a minor position; our position has always been that we are equal to all peoples and nations.